A Guide on Generative AI and Copyright

Ministry of Culture, Sports and Tourism

KOREA COPYRIGHT COMMISSION

Note to Readers

- The purpose of *A Guide to Generative AI and Copyright* ("Guide") is to inform artificial intelligence (AI) businesses, copyright holders, and users, who are the major stakeholders in generative AI, of what they need to be aware of in relation to copyright.

- The rapid development of AI technology has created an unpredictable environment for the copyright industry specifically and creative activities more generally. The use of AI technology in various fields has contributed to economic and social benefits, and in the creative sector, many are deploying generative AI as a tool to assist creative work. However, it's also true that some are concerned about the financial loss and threat to jobs that generative AI may bring.

- In response, the Ministry of Culture, Sports and Tourism (MCST) and the Korea Copyright Commission (KCC) brought together experts and stakeholders from the academia, legal profession, and various industrial technology sectors into a working group to review copyright issues triggered by the emergence of generative AI and to seek responses. This *AI – Copyright Law Working Group (ACL WG)* was established in February 2023 and has been in operation since. The discussions of the ACL WG led to the publishing of this Guide.

- The Guide focuses on the process of using data to train AI and then generating output, during which legal issues may arise – specifically during the process from building a foundation model for generative AI to deriving an AI output. It provides information, from the perspective of the current copyright law, for AI businesses, rights holders, and users of AI services. Readers will also benefit from explanations of recent generative AI use cases and related legislative trends in and outside Korea.

- This Guide is not intended to direct, in any way, the ongoing discussions on amendment bills to the Korea Copyright Act (KCA) currently pending in the National Assembly. However, after additional discussion, research, and opinion gathering, the ACL WG plans to come up with well-informed proposals for legislative and institutional reform.

- Going forward, the MCST and KCC will continue to exert effort through copyright-related laws and institutions to forge an enabling copyright environment where human creative endeavors are respected, and AI technological and industrial development is promoted.

* This Guide is not a legal interpretation of copyright issues related to generative AI. The final determination on whether copyright has been infringed shall be made by a court of law, considering all facts and details regarding an individual case.

* This Guide was written based on the law and legal precedents as of December 2023 and may be revised depending on future legislation, revisions, new rulings, or technological advancement.

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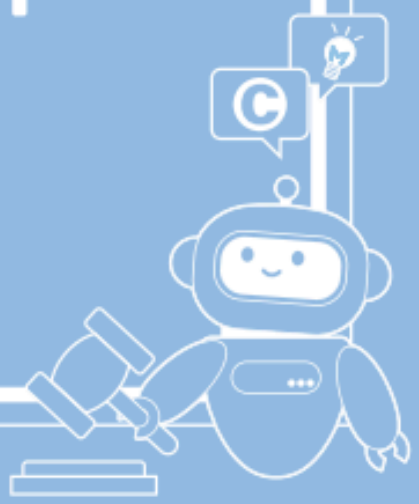
A Guide on Generative AI and Copyright

Chapter 1

Generative AI Technology and Copyright



01

Significance of generative AI technology and use cases

A Significance of generative AI

- Generative AI refers to artificial intelligence technology that leverages deep learning of large datasets to present output, at the instruction of a user, in the form of new data or content.

> **Deep Learning**
>
> Deep learning is an AI technology that mimics the human brain's neural network to make inferences from patterns of layered data it had trained on.

- Generative AI is essentially a computer producing new output, particularly an output resembling pre-existing data, by using artificial neural networks as learning models.

  ※ An artificial neural network refers to a training algorithm that mimics the way a human brain works.

- The rise of generative AI is revolutionizing how content is created across various sectors.
  - ChatGPT[OpenAI] can develop storyline ideas for a screenplay and even propose camera angles, actors' expressions and positions, lighting, and props, just like a film director.
  - RadioGPT[Futuri] is an artificial intelligence DJ that automatically collects information from the internet to generate a broadcast script. It also makes an actual broadcast.

B How generative AI technology is being used

- Natural language generation: Industries are developing and applying various generative AI models to fit their service. Such models are mainly used in natural language generation (chatbot service), including writing news articles, novels, or reviews.
  - A large language model (LLM) is a typical AI model that generates natural language. HyperCLOVA X[Naver], ChatGPT[OpenAI], and Bard[Google] provide services in the form of chatbots for easier use by non-experts and are used for productivity enhancement, such as in Q&As, summaries, and translations.

> **Large language model (LLM)**
>
> A LLM is a generative AI model that learns large-scale language data (text) to sequentially predict the most probable words in a given context, outputting sentences with high relevance.

- Image generation: Some services are based on a diffusion model, which is a technology that generates high-quality images in response to text or image input. Examples include DALL-E3[OpenAI], Make-A-Scene[Meta], Imagen[Google], and Generative-Fill[Adobe].

> **Diffusion model**
>
> Diffusion model is a generative AI model that makes new data (image) through the process of adding noise and then deleting the original data (image) from the noise.

- Voice and music generation: There are services (MusicLM[Google], MusicGen[Meta], Stable Audio[Stability AI], among others) that generate new music based on various inputs, such as another but similar type of music, a music score, MIDI music, chords, and a specific tempo, in addition to linguistic input regarding mood, genre or length.
  - Some services even use written text and human voice samples to generate narrations or songs in the voice of AI.

- Video generation: Although there are still technical issues to be resolved due to the temporal nature of video data (thematic consistency, flickering, etc.), advances in deep learning technology are enabling the transfer of styles and real-time image synthesis, allowing intuitive and high-performance video editing (Make-A-Video[Meta AI Research]).

- Other applications: Generative AI is also being used to write code, such as in optimizing or automating the coding process or in assisting code-writing (Copilot[GitHub], CodeWhisperer[Amazon]), to provide metaverse services (in areas like tourism, education, manufacturing, defense, entertainment, etc.), such as in 3D modeling, constructions of spatial environments, and creation of digital humans, by generating the appearance and texture of objects based on user input (text, image, GUI, etc.). It is also being used in CAD services.

02 Generative AI technology from the perspective of copyright

- Below is a diagram expressing various copyright issues that may emerge along the path from collecting training data to creating generative AI output.

Sequence	Process	Explanation	Copyright issue
1	Data collection	■ Original data (text, images, music, videos, etc.) are collected to train AI.	■ Including a copyrighted work in the data used to train AI involves the act of copying a work.
2	Data pre-processing	■ Unnecessary data are deleted (cleaned), divided (tokenized), given consistency (normalized), etc.. ■ Quality of data is enhanced and transformed into formats appropriate for training.	
3	Training of model	■ Pre-processed data is used to train the AI model.	
4	Evaluation of model and optimization	■ Performance is evaluated using a verified dataset. ■ The model's structure, training completion rate and parameters are adjusted to optimize the model.	
5	Generation of AI output	■ AI output is generated when a user inputs a prompt.	■ Output generated by AI may infringe copyright.

A Copyright issues during AI training stage

AI training data can include not only works, but also databases, performances, phonograms, and broadcasts, leading to relevant rights being infringed. However, this Guide will focus on works since copyright issues that arise are essentially not different from those related to the latter.

- Training AI involves several steps to collect and process the data, and to form a dataset, which is then passed through an artificial neural network. These steps inevitably involve the act of copying a work.
  - Suppose a person uses publicly available data on the internet to train an AI model without permission from the rights holder. In that case, the right to reproduce a particular work, protected by KCA, may be violated during the training.

Copyright

Creative works that express human thoughts or emotions are protected by copyright, which, as a rule, is given to the author. Copyright is comprised of moral rights (right to make public, right to attribution, right to integrity) and economic rights (rights to reproduce, perform, publicly transmit, exhibit, distribute or lend a work, or to create a derivative work).

Database

KCA also protects, under certain conditions, databases that may not be creative in the selection and arrangement of their content, such as telephone directories, personnel directories, or address books. According to the KCA, databases must be systematically arranged or constructed and searchable to be protected.

Right to reproduce a work

Reproducing a work is the act of making another physical form of a work by printing, photographing, duplicating, making audio or visual recording, or making digital copies. (KCA Article 2.22) The author holds the right to make copies of his or her work – i.e., right to reproduction (KCA Article 16) – meaning that others who intend to copy that work have to get permission from the holder of this right.

B Copyright infringement issues related to AI output

Diverse terms are used to refer to the output generated by AI. However, since the KCA only recognizes humans as creative authors, the Guide recommends terms such as "AI output" or "AI result" to be used rather than "AI creations" or "AI works." This Guide uses "AI output."

- Generative AI output is stochastically generated from an AI model that has completed its training based on input such as prompts of users.
  - If an AI output is identical or similar to parts of an original copyrighted work included in the training data, copyright issues may arise regarding whether the original work's copyright was infringed, and if so, who is responsible.

Prompt

Traditionally, the term "prompt" is used as "a sign on a computer screen that shows that the computer is ready to receive your instructions." (Source: Cambridge Dictionary) However, in the context of generative AI, the term is generally accepted to refer to a certain input value (text, image, video, etc.) to instruct or order the AI model to perform a function.

For reference

Rights granted by KCA to holders of copyright and neighboring rights

Copyright		Moral rights	Right to make a work public
			Right to attribution
			Right to integrity
		Economic rights	Right to reproduce a work
			Right to perform a work
			Right to publicly transmit a work
			Right to exhibit a work
			Right to distribute a work
			Right to lend a work
			Right to produce a derivative work
Neighboring rights[1]	Performers	Moral rights	Right to attribution
			Right to integrity
		Economic rights	Right to reproduce a work
			Right to distribute a work
			Right to lend a work
			Right to perform a work (excluding broadcasted performances)
			Right to broadcast a work (excluding audio-recorded performances)
			Right to interactively transmit a work
		Right to claim remuneration	Right to claim remuneration for broadcasts
			Right to claim remuneration for digital sound transmissions
			Right to claim remuneration for performances
	Phonogram producers	Economic rights	Right to reproduce a work
			Right to distribute a work
			Right to lend a work
			Right to interactively transmit a work
		Right to claim remuneration	Right to claim remuneration for broadcasts
			Right to claim remuneration for digital sound transmissions
			Right to claim remuneration for performances
	Broadcasters	Economic rights	Right to reproduce a work
			Right to simultaneously broadcast live events
			Right to perform a work (only when payment is received for admission to watch a broadcast)

1) For an explanation of this term, see the section explaining "neighboring rights" in Chapter 4.

A Guide on Generative AI and Copyright

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01

Being aware of potential copyright infringement when using generative AI

A Possibility of copyright infringement

Depending on how one uses generative AI, infringement of not only copyright but also of rights to portrait, sound or name may also occur. However, this Guide will focus only on precautions related to copyright infringement.

- Users of generative AI can potentially infringe the copyright of others by getting AI to generate an output that is identical or similar to an existing work.
  - In particular, building a generative AI model requires training using a large amount of data, and that data may contain significant amounts of existing copyrighted works and could result in identical or similar outputs, thus increasing the risk of copyright infringement.

Related examples

- In a lawsuit involving a code-generating AI[14], the plaintiffs argued that the program generated codes that were the same as ones already existing.[15] Depending on how a prompt is articulated, an image-generating AI can produce characters that are exactly the same as those that are already well-known.[16]

"Realistic 3D rendering of Mickey Mouse working on a vintage computer doing his taxes"
on DALL · E 2 (left) vs. Stable Diffusion (right)

14) DOE 1 v. GitHub, Inc., 4:22-cv-06823, (N.D. Cal.). For details, see 〈https://githubcopilotlitigation.com/〉.
The complaint is available at 〈https://githubcopilotlitigation.com/pdf/06823/1-0-github_complaint.pdf〉.
15) For more information about the lawsuit, see 〈https://www.courtlistener.com/docket/65669506/doe-1-v-github-inc/〉.
16) 〈https://waxy.org/2022/08/exploring-12-million-of-the-images-used-to-train-stable-diffusions-image-generator/〉

- When copyright has been infringed, the infringer may be subject to civil and criminal penalties – i.e., be liable for civil damages for tortious acts or criminal penalties under the penalty provisions of the KCA. (Imprisonment of no more than five years or a fine of no more than KRW 50 million for infringement of economic rights, and imprisonment of no more than three years or a fine of no more than KRW 30 million for defamation of an author by infringing their moral rights).

B Precautions when using generative AI

- Users of generative AI should ensure that data, such as text, images, or audio, that they input to produce the desired AI output does not infringe or induce infringement of someone else's copyright.
  - In particular, a user should take special care not to infringe copyright by using AI output that is the same as or similar to an existing work by performing, exhibiting, distributing or publicly transmitting that output, or otherwise making it publicly available.

Performing

Performing refers to presenting to the general public a work by acting, playing an instrument, singing, reciting, screening, replaying or other means. It can also include replaying a cinematographic work in front of many people.

Exhibiting

Exhibiting refers to displaying or hanging an artistic, photographic, or architectural work, in either in its original or reproduced form – i.e., in physical form – to allow the general public to view the work. The act of exhibiting does not apply to a work that is not artistic, photographic, or architectural.

Distributing

Distributing is transferring a work or its copy by assigning it or lending it to the public, with or without payment. Major examples include selling or lending CDs or DVDs.

Publicly transmitting

Publicly transmitting an output or a work means transmitting it to the public through wired or wireless means. Broadcasting (e.g., transmitting terrestrial broadcasts through television), interactive transmissions (e.g., posting on website, OTT services) and digital sound transmissions (e.g., music service through podcasts) are all public transmissions.

1) Text

- If a user generates an AI output that is identical or similar to an existing work by entering the work into the prompt window in its original form or by entering a text inducing the generation of an identical or similar output and then goes on to post the result on the internet, the user may be infringing various rights such as the rights to reproduction, public transmission, and integrity.[17]

Examples of common forms of copyright infringement

- A person inputs a prompt inducing an image-generating AI to produce popular characters like Pororo and then uses the generated image as the profile picture on one's social media account.
- A person inputs a detailed story of an existing novel as a prompt to induce a similar story to be generated, and then posts the output on one's blog.

[For reference] These images were generated by inputting prompts such as "Winnie-the-Pooh" and "Snoopy." The outputs show the features of the original characters sufficiently enough to be able to recognize them.[18]

2) Images and videos

- If a person inputs a specific image or video to create an AI image or video without permission and then uses the generated AI output, they may be infringing copyright, such as the right to reproduce a work.

Examples of common forms of copyright infringement

- A person produces an advertisement poster by inputting a copyrighted image into an image-generating AI program, changes the text to express one's own company products and then uploads the poster onto the company website.
- A person uses AI to merge an image of a popular character with a video of an existing musician performing and then uploads the result onto YouTube.

17) What rights are actually infringed will depend on the act involved.
18) Images generated using Microsoft Bing's *Image Creator*, a generative AI service (21st November, 2023). (https://www.bing.com/images/create)

3) Music

- If a user generates an AI output (video, music, etc.) by inputting someone else's music without authorization from the owner and then uses that output, they may be infringing copyright, including the right to reproduce a work.
  - In particular, if a person produces a cover song – where AI trains on a musician's music and then "sings" the song in another musician's voice – but in the process, uses someone else's music without permission or decides to upload the AI cover song onto an online platform, this person may be infringing copyright as well as neighboring rights because the entire process involves copying someone else's music or album.
  - In addition, in some cases, these actions may be violating the Unfair Competition Prevention Act or infringing general publicity rights, among other rights.

Neighboring rights

Neighboring rights are rights granted to those who had contributed financially or creatively so that a work can be delivered to the public, such as performers, phonogram producers or broadcasters. KCA protects these rights as those neighboring to copyright.

※ In Korea, there was a discussion on a general level about unauthorized use of portraits of famous people and their publicity rights, which are rights to commercially use, control, or exclusively dominate the economic benefits or value of a person's portrait or name. Then, an amendment, effective since June 2022, was made to the Unfair Competition Prevention Act, stipulating unauthorized use of a celebrity's personal identification mark (Article 2-1-(l)) to be an act of unfair competition and thus regulating such use. On the other hand, a proposal to comprehensively amend the KCA, including incorporating a provision directly regulating publicity rights, is currently pending in the National Assembly. (Proposal initiated by member Jong-Hwan Doh on 15th January 2021. Motion No. 2107440.)

Examples of common forms of copyright infringement

- A person inputs the melody of a song sung by a certain singer (by humming, whistling or using a sound source) as parameters along with a text and a melody similar to someone else's to produce music.
- A person uses AI to generate music by making Michael Jackson's voice sing to a BTS song.

4) Other cases

- Some generative AI models (e.g., Stable Diffusion of company "S") allow the user to fine-tune the model directly to reflect one's style of choice.
  - Fine-tuning additionally involves the user training the AI using specific selective data, which, again, means that copyright infringement of the training data can become an issue.
  - Suppose a person trains the AI to focus on a certain artist's work or a specific image to induce the AI to render a particular style. In that case, the output will more likely be identical or similar to the inputted works. Thus, the user needs to take extra precautions due to the higher likelihood of copyright infringement.

02 Ethical and policy considerations in areas such as research, education, or creativity

A Discussion regarding generative AI in areas such as research, education, or creativity

- Ethical issues related to the use of generative AI are being discussed mainly by academic societies and universities in areas of research or education. Such institutions have established AI-related policies for publishing papers in scholarly journals and using AI in class.

Related examples

- University "A" in Korea established a guideline for its professors, who are required to choose one out of three options regarding the use of generative AI (①Use of generative AI forbidden, ②Use of generative AI allowed only after prior approval from professor or after labeling the source, ③Use of generative AI permitted), which is then stated in the course curriculum for the students to follow.

- There is also an ongoing discussion on the use of generative AI in creative fields, such as art and webtoons, while art competition organizers in different genres are exploring the possibility of adopting an AI policy.

Related examples

- In May 2023, Korean company "N" was swept in controversy when it hosted a webtoon competition without setting a policy banning AI. It adopted a ban only later, forbidding the use of AI from the second round of submissions. Company "K" also held a webtoon competition where an explicit condition for submitting a work was that "the work must be drawn by a human hand."

B Considerations when submitting a work to an academic journal or competition

1) Check AI-related policies and guidelines of journals and competitions

- A person seeking to make a submission should check and comply with the policies and guidelines of journals and competitions regarding the use of generative AI.
  - An incompliant submission may result in its publication or award being canceled while failing to disclose the use of AI may be considered a false submission and lead to a legal claim.

Related examples

- Academic journal N does not recognize a LLM tool as a CRediT author of a research paper that it publishes. It explicitly requires that if a LLM tool was used, it be adequately explained in the research methodology of the paper while the use of a generative AI image is disallowed altogether.
- In September 2023, Korean company "K" did not allow AI-made messenger emoticons from entering its store and announced that it will continue to look into whether or not it will accept AI technology.

2) Label the source of generative AI output and use of AI-assisted tools

- An author is encouraged to verify the source of generative AI-powered text before citing it in academic papers and to disclose the source where possible.[19]
  - Articles written by generative AI may be inaccurate due to biases in the training data and its technical nature of generating output based on probability.
  - If an AI generates an output similar to an article contained in the training data and the user quotes the output verbatim, the user can be accused of plagiarism in addition to copyright infringement.

Plagiarism

Plagiarism refers to the act of pretending to have created a work when in fact someone else had. It is a moral or ethical concept, not a legal one. Therefore, the scope of plagiarism may not coincide with that of copyright infringement.

- When citing an article produced by generative AI, the author must distinguish the citation from the parts they had written directly and clearly label it as such.
  - The author should choose a citation method appropriate to the situation and purpose. In the case of an academic paper, they should follow the citation style recommended by the relevant discipline (APA, MLA, Chicago Style, etc.).[20]
  - Also, they should indicate, in as much detail as possible, what generative AI-powered creative tools they had used and how.

Related example (of a Korean university "A"'s policy on how to make citations)

- If a text generative AI was used: e.g., ChatGPT3.5 (20th April 2023). "Content of prompt." ChatGPT3.5 of OpenAI was used to generate the text. https://chat.openai.com/
- If an image generative AI was used: e.g., Stable Diffusion (20th April 2023). "Content of prompt." Stable Diffusion web version was used to generate the image. https://stablediffusionweb.com/

19) Many language models now provide its users with internet links to resources a model had used in the generation process when they render output. These links can be used as a reference when making citations. However, in other areas including images, it may be realistically difficult to identify the source of the original data used to generate the AI output.

20) These citation styles are the most common ways of citing sources when writing academic papers, reports and other forms of written text. For citation methods for generative AI, refer to the relevant websites.
APA Style: 〈https://apastyle.apa.org/blog/how-to-cite-chatgpt〉, MLA Style: 〈https://style.mla.org/citing-generative-ai/〉, Chicago Style: 〈https://www.chicagomanualofstyle.org/qanda/data/faq/topics/ Documentation/faq0422.html〉

03 Other recommendations

A Check regulations such as those in AI service providers' Terms of Use

- In a separate provision in their Terms of Use, generative AI providers usually stipulate how and to what extent the user is allowed to use the output.[21] Therefore, a person using the service must check all regulations in advance to prevent problems arising from violating the Terms of Use.[22]

B Label the use of generative AI

- Even if a user does not intend to submit an article or a work to an academic journal or competition, it is recommended that the user clearly label, in a reasonable manner, that they have used AI to generate texts, images, or videos.

- Labeling will minimize potential confusion between AI output and human-created works, thereby increasing public trust in how content is created, and rights are attributed.
  - It will also contribute to specifying the owners of various rights to content, thereby clarifying the liability of each party should a legal conflict arise due to copyright infringement.

Related example

- In November 2023, video platform "Y" announced its AI policy, under which a creator is required to disclose whether they had used AI to generate a video or to change parts of an existing content. If the uploader does not comply, the content could be deleted, profit-sharing scheme stopped or the uploader imposed with other forms of penalty.

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21) For an AI output, whether or not the output is copyrightable and who copyright belongs to, will depend on whether creativity of that output is enough to be recognized under KCA.

22) Example: OpenAI's Terms of Use (updated on 14th November 2023). (https://openai.com/policies/terms-of-use)

"**Your Content.** You may provide input to the Services ("Input"), and receive output from the Services based on the Input ("Output"). Input and Output are collectively "Content." You are responsible for Content, including ensuring that it does not violate any applicable law or these Terms. You represent and warrant that you have all rights, licenses, and permissions needed to provide Input to our Services.

Ownership of Content. As between you and OpenAI, and to the extent permitted by applicable law, you (a) retain your ownership rights in Input and (b) own the Output. We hereby assign to you all our right, title, and interest, if any, in and to Output."

For reference

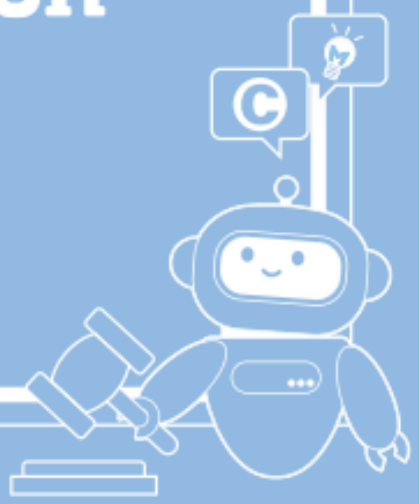
Key guidance for AI businesses, rights holders, and users of AI

Who	Key guidance
AI businesses	▪ Legitimately obtain the right to use a copyrighted work prior to using it for AI training by, for example, paying adequate remuneration. ▪ State in detail the purpose, scope, and duration of the exploitation when signing a contract.
	▪ Prevent copyright infringement by ensuring an AI output is not identical or similar to an existing work.
	▪ Consider adopting specific labeling for AI output to distinguish it from human creative works.
Rights holders	▪ To prevent a work from being used for AI training, explicitly opt-out or consider adopting specific technical measures.
AI users	▪ Ensure that prompt inputs and the use of AI output do not infringe or induce infringement of someone else's copyright.
	▪ Check policies related to the use of AI in articles or works when submitting them to academic journals or competitions. ▪ Cite the source and indicate whether AI-assisted creative tools were used to produce generative AI output.
	▪ Check relevant regulations, such as the Terms of Use, applicable to the AI service. ▪ Label the use of generative AI.

A Guide on Generative AI and Copyright

Chapter 5

AI Output and Copyright Registration



01

Progress-to-date of the ACL WG

- In February 2023, the Ministry of Culture, Sports, and Tourism (MCST) and the Korea Copyright Commission (KCC) formed the AI–Copyright Law Working Group (ACL WG), which has been in operation since. The ACL WG comprises copyright academics, legal experts, industrial technology experts, and stakeholders to examine copyright issues related to the emergence and spread of generative AI and to discuss institutional reforms in response to the evolution of AI technology.
  - The ACL WG discussed recent trends in generative AI technology and related copyright issues. These discussions led to the issuing of this Guide.

- The members and progress-to-date of the ACL WG are as follows:

* ACL WG members

Sector and Name		Affiliation and position
Academia	Dae-Hee Lee	Professor, Korea University School of Law
	Chul-Nam Lee	Professor, Chungnam National University School of Law
	Byung-Pil Kim	Professor, Dept. of Technology Management, Korea Advanced Institute of Science and Technology (KAIST)
Law	Kyu-Hong Lee	Presiding Judge, Seoul High Court
	Kwang-Nam Kim	Presiding Judge, Seoul High Court
	Min-Jung Kim	Prosecutor, Seoul Central District Prosecutors'Office
	Yong-Min Lee	Attorney-at-law, Yulchon Law Firm
Industrial Technology	Won-Young Yoo	Principal Researcher, Content Research Division, Electronics and Telecommunications Research Institute (ETRI)
	Han-Kyu Koh	Principal Researcher, AI Lab, LG Electronics
	Sung-Won Ahn	Director, AI Policy Research, Software Policy Research Institute (SPRI)
	Kyung-Il Lee	CEO, Saltlux
Rights holders	Dong-Hyun Kim	Secretary General, Korean Literature, Academic Works and Art Copyright Association
	Hyun-Sook Kim	Director, Policy and Legal Research Institute, Korea Music Content Association
	Min-Jae Choi	Director, Media Research Centre, Korea Press Foundation
Government/ Public sector	Gyung-Geun Chang	Director, Copyright Policy Division, Ministry of Culture, Sports and Tourism (MCST)
	Gyu-Ho Kang	Deputy Director, Copyright Policy Division, MCST
	Jin-Sook Jang	Assistant Director, Copyright Policy Division, MCST
	Hye-Chang Kim	Director General, Policy Research Department, Korea Copyright Commission (KCC)
	Chan-Dong Kim	Director, Legal & Policy Research Team, KCC
	Jung-Hoon Park	Senior Researcher, Legal & Policy Research Team, KCC
	Tae-Hwa Gye	Assistant Director, Legal Support Department, Korean Copyright Protection Agency (KCOPA)

* ACL WG progress-to-date

Date of meeting	Name of meeting	Discussion topics
24th February 2023	Kickoff meeting (1st meeting)	▪ Terms of reference of ACL WG and introduction to discussion topics, etc.
20th March 2023	2nd meeting	▪ AI model training and ChatGPT ▪ Classification of AI-related copyright issues
24th April 2023	3rd meeting	▪ Generative AI and related copyright issues (Fair use, TDM, etc.)
30th May 2023	4th meeting	▪ AI technology and its application in the music industry, etc.
20th June 2023	5th meeting	▪ Mandatory labeling of AI output; AI and copyright registration
11th July 2023	6th meeting	▪ Improving AI-related laws and institutions from rights holders'perspective
8th August 2023	7th meeting	▪ Listening to the AI industry perspective and discussion on the Guide
12th September 2023	8th meeting	▪ Sharing of the draft Guide and first round of feedback
31st October 2023	9th meeting	▪ Sharing of the draft Guide and second round of feedback

▪ In addition to holding meetings, the ACL WG invited the public to comment on the Guide. At the same time, the Guide itself underwent separate reviews (written and in-person) by stakeholders, such as AI businesses and rights holders, as well as copyright academics and legal experts.

Sector		Method of feedback
Feedback from public		Seoul Copyright Forum (26th October), Culture, Sports and Tourism Digital Innovation Forum (29th November), Korea-China Copyright Forum (7th December), etc.
Feedback from individuals	Rights holders	(Nine) Rights holders' organizations such as the Korean Association of Newspapers and the Korea Music Copyright Association, (seven) large AI development corporations in Korea and overseas, and start-ups (18th October, 14th November, 24th November)
	AI businesses	

02 Future plans

- This Guide is based on the interpretation of the current KCA. It is intended to provide AI businesses, rights holders, and users of AI services with reference material regarding the use of generative AI. For further development, there is a need for continuous discussion on how to improve copyright-related laws and institutions concerning generative AI.
  - In particular, measures to secure legitimate rights through a system providing adequate remuneration when using a work for AI training, ways to facilitate the transaction of works, issue of whether to protect AI output, or whether AI output should require labeling, are some of the topics that need further consideration to better protect the rights of creators as well as develop the AI industry. The ACL WG will discuss these topics as part of its future research.

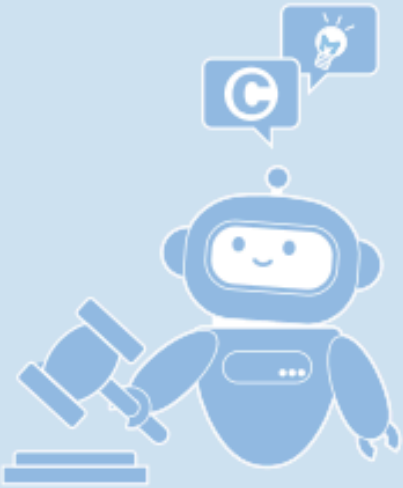
- Currently, the MCST is preparing a plan to support the development of technologies* to protect copyright and manage distribution across the entire process from training generative AI models to generating and distributing output.

  * Such technologies include those that compare the similarity of generative AI output (text, video, music, etc.), track original work, or insert watermarking into AI-based 3D output, among others.

- If a remuneration scheme is to be adopted for works used in AI training, a transparent and reliable communication channel will need to be established to ensure that a virtuous cycle that protects creators while advancing AI technology and related industries is created.
  - If the cost of building an AI training model is excessively high, it may result in the shrinking of AI-related industries and less use of copyrighted works. On the other hand, excessively low cost would lead to human creativity being devalued to a mere means to generate AI output.
  - Finding a win-win solution that can facilitate the necessary exploitation of works for AI training while fully recognizing the value of fruits of human creativity will increasingly become critical.

- More consideration will need to be made not only to AI-related legislative trends overseas but also to the technological development of AI and the relevant industrial structure in Korea and abroad to enable a more fine-tuned alternative. Also, the overall copyright protection regime will need to be revisited internationally.

A Guide on Generative AI and Copyright



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